

Court No. - 21

Case :- WRIT - C No. - 44620 of 2023

Petitioner :- Smt.Shadab Parveen

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Adil Khan

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,Acting Chief Justice

Hon'ble Kshitij Shailendra,J.

1. The instant petition has been filed challenging the recovery citation dated 08.08.2023 issued by respondent No.3 for recovery of electricity dues from the petitioner.
2. Learned counsel for the petitioner submitted that the petitioner applied for permanent disconnection as the electricity pole through which electricity was supplied to her got uprooted.
3. Counsel for the respondent-Electricity Department submits that the dispute relating to correctness of the bill has to be raised by the petitioner as per the provisions of Clause 6.5 of the Electricity Supply Code 2005.
4. Counsel for the petitioner states that the petitioner shall deposit Rs.50,000/- and her objections may be decided.
5. Accordingly, the petition is **disposed of** by providing that in case the petitioner deposits Rs.50,000/- before respondent No.2 alongwith true attested copy of the instant order and files objections against the impugned recovery, the respondents will decide the same within next four weeks and unless the decision is taken, no further action shall be taken by the respondents on the basis of the impugned recovery certificate. After the decision is taken, the impugned recovery certificate shall abide thereby.

Order Date :- 4.1.2024

Jyotsana

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, A.C.J.)